

26CHCV02069 26CHCV02069

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Case Number: 26CHCV02069 Hearing Date: August 18, 2026 Dept: F49

Dept. F49

Date: 8/18/26

Case Name: Main Street Newhall, LLC vs. John W. Wright;
and Does 1-10

Case No. 26CHCV02069

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 18, 2026

MOTION TO QUASH
SERVICE

Los Angeles Superior
Court Case No. 26CHCV02069

Motion filed: 6/9/26

MOVING PARTY: Defendant John W. Wright

RESPONDING PARTY: Plaintiff Main Street Newhall, LLC

NOTICE: OK

RELIEF REQUESTED: An order from this Court quashing service of Plaintiff's Summons and Complaint on Defendant John W. Wright.

TENTATIVE RULING: The motion is DENIED.

BACKGROUND

This unlawful detainer action arises from the alleged failure of Defendant John W. Wright ("Defendant") to pay rent pursuant to a commercial rental agreement between the parties. On May 22, 2026, Plaintiff Main Street Newhall, LLC ("Plaintiff") filed the Complaint against Defendant and Does 1-10, seeking past-due rent, attorney fees, and forfeiture of the agreement.

On June 5, 2026, Plaintiff filed proof of service by substituted service, indicating that Defendant was served at 24254 Main Street, Newhall, CA 91321, by leaving a copy of the Summons and Complaint with the person apparently in charge of the premises.

On June 9, 2026, Defendant filed the instant Motion to Quash Service of Summons (the "Motion").

On June 25, 2026, and July 7, 2026, Plaintiff filed additional proofs of substituted service. On July 22, 2026, Plaintiff filed an Opposition to the Motion.

On August 4, 2026, Defendant filed a Reply.

ANALYSIS

Pursuant to Code of Civil Procedure section 418.10, subdivision (a), "[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion ... [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her."

Where

a proper basis for personal jurisdiction exists, the court acquires personal jurisdiction over a party when the statutory requirements for service of the summons are met. (Code Civ. Proc., § 410.50, subd. (a); *Schering Corp. v. Super. Ct.* (1975) 52 Cal.App.3d 737, 741.) A party's general appearance is equivalent to personal service of the summons on that party. (Code Civ. Proc., § 410.50, subd. (a).)

A.

Motion to Quash Service

Defendant, specially appearing, challenges the service purportedly effectuated on May 29, 2026, contending that it was insufficient to establish personal jurisdiction over him. (Mot., at p. 3.) Defendant asserts that the Summons and Complaint were served at an address that is neither his residence, usual place of business, or mailing address, and that substituted service was therefore defective. (Id., at pp. 3-4.) Defendant also asserts that the declaration of due diligence is similarly deficient because it only documents attempts to serve Defendant at the incorrect address. (Ibid.)

(1)

Validity

of the Later July 7, 2026 Service

As a preliminary matter, the Court notes that Plaintiff filed an additional proof of substituted service on July 7, 2026. This proof of service indicates that Defendant was served on June 17, 2026, at 28613 Crystal Heights Ct., Santa Clarita, CA 91387. (Proof of Service, July 17, 2026, at p. 1.) In the accompanying declaration of diligence, registered process server Jane Furmanskaya ("Furmanskaya") attests that she attempted service at the noted address on June 11, 2026, and June 13, 2026, but there was no answer at the door. (Id., Furmanskaya Decl.) Furmanskaya ultimately accomplished service at the Crystal Heights Ct. address on June 17, 2026, by leaving the papers with Heather Ericsson, Defendant's partner. (Id., at p. 1.) Defendant acknowledges that the Crystal Heights Ct. address is his residence. (Mot., at p. 4.)

In its Opposition, Plaintiff asserts that this later service at Defendant's residence renders the Motion moot. (Opp'n, at p. 3.) The

Court disagrees. Later service does not deprive the Court of authority to determine whether valid service exists such that the Court may exercise jurisdiction over a defendant. The Court accordingly proceeds to determine whether the July 7, 2026 service was effective to establish jurisdiction.

If a copy of the summons and complaint cannot be personally delivered to the person served after reasonable diligence in attempting personal service, Code of Civil Procedure section 415.20, subdivision (b) permits service to be accomplished by leaving a copy of the summons and complaint at a person's dwelling house or usual place of abode, in the presence of a competent member of the household. "[A] party shows reasonable diligence by attempting personal delivery of the summons and complaint, in good faith, on at least three occasions on three different days at three different times." (Code Civ. Proc., § 415.20, subd. (b)(2).)

A registered process server's declaration of service establishes a presumption of valid service. (Evid. Code, § 647; *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390 (Zara).)

Here, Furmanskaya declares under penalty of perjury that she served the Summons and Complaint on Defendant by leaving the papers in the presence of Defendant's partner. Her declaration creates a presumption that service was valid. The burden is accordingly on Defendant to produce evidence to rebut the presumption. Defendant, however, does not dispute that the service at his residence was valid. (See generally, Reply.) Furmanskaya's declaration is therefore sufficient for the Court to find that personal jurisdiction has been established.

Moreover, upon review of the declaration, the Court determines that Furmanskaya's service attempts comply with statutory requirements. She made three attempts at personal service at Defendant's residence, on different days and at different times. She knocked on the door and rang the doorbell in the evening on June 11, 2026, and in the early afternoon on June 13, 2026. (Proof of Service, July 7, 2026, Furmanskaya Decl.) She also visited the home in late afternoon on June 17, 2026, when Defendant's partner opened the door and accepted the papers. (Ibid.) Furmanskaya's visits to Defendant's residence demonstrate reasonable diligence in attempting to serve Defendant personally. Further, service was made on Defendant's partner, and there is no dispute that she is a competent member of Defendant's household. The substituted service on June 17, 2026 was accordingly valid.

Nevertheless, Defendant insists that the Court still order that the May 29, 2026 service be quashed to establish a “clear record” of the time to respond to the Complaint. (Reply, at pp. 1-2.) The standard for a motion to quash, however, is whether the court has jurisdiction over the defendant, not when the Court obtained jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) Once jurisdiction is established, a motion to quash must be denied. Further, section 418.10 establishes its own timeline for responding to the Complaint. (§ 418.10, subd. (b) [“The service and filing of the notice shall extend the defendant’s time to plead until 15 days after service upon him or her of a written notice of entry of an order denying his or her motion, except that for good cause shown the court may extend the defendant’s time to plead for an additional period not exceeding 20 days.”].) The clear timeline for response that Defendant seeks is thus already established by statute.

Based on the foregoing, the Court DENIES the Motion.

CONCLUSION

The Court DENIES Defendant John W. Wright’s Motion to Quash Service of Summons.

Moving party to give notice.